

23CHCV02912 23CHCV02912

County: los-angeles

Division: Civil Law and Motion

Department: F51

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Case Number: 23CHCV02912 Hearing Date: August 7, 2026 Dept: F51

MOTION TO COMPEL

DISCOVERY RESPONSES

(Requests for Admission, Set
One)

Los Angeles Superior Court Case
23CHCV02912

Motion filed: 4/21/26 JURY TRIAL: 8/17/26

MOVING PARTY: Plaintiff Hovhannes Karapetyan
("Plaintiff")

RESPONDING PARTY: Defendant Alexis Javier Linares
Erazo ("Responding Defendant")

NOTICE: ok

RELIEF REQUESTED: An order deeming the matters in Plaintiff's
Requests for Admission ("RFAs"), Set One, served on Responding Defendant,
admitted. Plaintiff also seeks to impose \$2,734.95 in monetary sanctions
against Responding Defendant and/or his counsel.

TENTATIVE RULING: The motion is denied as moot. The
Court imposes \$949.95 in monetary sanctions against Responding Defendant's counsel,
payable within 30 days.

BACKGROUND

This is a personal injury action in which Plaintiff alleges that on 10/22/21, Defendants caused their vehicle to collide with Plaintiff's vehicle on California State Route 118 Highway. (Compl. ¶ 7.) On 9/28/23, Plaintiff filed his complaint against Defendants, alleging a sole cause of action for Negligence. On 11/27/23, Defendants filed their answer.

On 3/26/25, Plaintiff served Responding Defendant with his first set of RFAs. (Ex. A to Decl. of Araksia Adamian.) On 4/21/26, Plaintiff filed the instant motion to deem the RFAs as admitted. On 4/22/26, Responding Defendant served his responses to the subject RFAs. (Ex. A to Decl. of Shelby L. Clark.) On 5/5/26, Responding Defendant filed his opposition to the instant motion. On 8/3/26, Plaintiff filed his reply.^[1]

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ANALYSIS

A propounding party may move for an order deeming the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted if the responding party fails to serve a timely response within 30 days. (Code Civ. Proc. §§ 2033.280, subd. (b); 2033.250, subd. (a).) "The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220." (Code Civ. Proc. § 2033.280, subd. (c).)

Here, as of the date of the motion, Plaintiff asserted that despite being afforded multiple time extensions, Responding Defendant "has not provided objection-free, verified and complete

responses to Plaintiff's discovery requests." (Pl.'s Mot. Mot. 3:23–24.)

However, it appears to the Court that Responding Defendant has since served Plaintiff with substantive responses to the subject RFAs. (Ex. A to Clark Decl.)

In reply, Plaintiff argues that

Responding Defendant's responses are not in substantial compliance with Code of Civil Procedure section 2033.220 because "nineteen of the twenty responses open with a string of boilerplate objections, and every answer is then given only 'subject to and without waiving the foregoing objections.' Defendant thus continues to assert, and expressly reserves, objections he waived as a matter of law in May 2025." (Pl.'s Reply 3:6–10.)

The Court finds that Responding

Defendant's responses are in substantial compliance with Code of Civil Procedure section 2033.220, as he has provided substantive responses to each of the RFAs. Accordingly, the motion to deem the RFAs as admitted is denied as moot.

A.

Sanctions

"It is mandatory that the court

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion." (Code Civ. Proc. § 2033.280, subd. (c).) Additionally, "the court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney's fees, incurred by anyone as a result of that conduct." (Code Civ. Proc. § 2023.030, subd. (a).)

Here, Plaintiff seeks to impose \$2,734.95

in monetary sanctions against Responding Defendant and/or his counsel, encompassing: (1) 2.1 hours drafting the instant motion; and (2) an anticipated 1 hour drafting a reply and attending the instant hearing, at counsel's hourly rate of \$850.00 per hour. (Adamian Decl. ¶ 14.) Counsel also seeks to recover \$99.95 in filing fees. (Ibid.) In opposition, Responding Defendant argues that no sanctions are warranted because "there is no evidence of willfulness or bad faith. Defense Counsel has communicated with Plaintiff's Counsel throughout the discovery process and Plaintiff has ultimately obtained the information sought."

(Def.'s Opp. 6:17–19.)

In reply, Plaintiff argues that “the Motion was necessitated by Defendant’s failure, following five extensions and fourteen months, and the fact that the Motion finally prompted Defendant to verify his year-old responses confirms, rather than negates, that necessity. Plaintiff should not have had to seek this Court’s intervention to obtain what the Code entitled him to without it.” (Pl.’s Reply 4:10–15.) The Court agrees. Based on the foregoing, the Court awards Plaintiff \$949.95 in monetary sanctions against Responding Defendant’s counsel.

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CONCLUSION

The motion is denied as moot. The Court imposes \$949.95 in monetary sanctions against Responding Defendant’s counsel, payable within 30 days.

[1]

The Court notes that Plaintiff filed his reply two Court days late. (Code Civ. Proc. § 1005, subd. (b).) Notwithstanding the foregoing, the Court exercises its discretion, under Rule 3.1300 of the California Rules of Court, to excuse the untimely-filed reply and consider its contents.